



Rec. No.	Recommendation	Action	Indicator
142.1 142.2 142.3 142.4 142.5 142.6 142.7 142.8 142.9 142.10 142.11	Ratify the Optional Protocol to the Convention on the Rights of the Child (CRC) on the sale of children, child prostitution and child pornography to strengthen and harmonize existing national laws and policies.	Take steps towards the ratification of the OP II CRC on the sale of children, child prostitution and child pornography.	• Cabinet memorandum on the ratification of the OP II CRC prepared and signed.
		Review all laws and policies touching on the rights of children to be in line with the OP II CRC including Children's Act, Sexual Offences Act, Counter Trafficking in Persons Act among others.	• Children's Act Reviewed • Sexual Offences Act Reviewed • Sexual Offences policy adopted.
142.12	Consider ratifying the Second Optional Protocol to the International Covenant on Civil and Political Rights, aiming at the abolition of the death penalty.	Take steps towards the ratification of the Second Optional Protocol to the ICCPR through undertaking of public sensitization forums on the abolition of death penalty.	• No. of stakeholders sensitized on the Second Optional Protocol to the ICCPR.
142.13 142.14 142.15 142.16 142.17 142.18 142.19 142.20 142.22	Consider ratifying the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment.	Take steps towards ratifying the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment through undertaking of public sensitization forums.	• Advisory opinion prepared. • No. of stakeholders sensitized in the counties.
142.13 142.14 142.15 142.16 142.17 142.27	Consider ratifying, the Optional Protocol to the Convention on the Rights of Persons with Disabilities and the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families.	Take steps towards ratifying, the Optional Protocol to the Convention on the Rights of Persons with Disabilities and the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families.	• Advisory opinion prepared. • No. of stakeholders sensitized in the counties.

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142.21	Complete the process of ratifying the Protocol to the African Charter on Human and People' Rights on the Rights of Older Persons in Africa and the Protocol to the African Charter on Human and Peoples' Rights on the Rights of Persons with Disabilities in Africa.	Take steps towards completing the ratification process of the Protocol to the African Charter on Human and People' Rights on the Rights of Older Persons in Africa and the Protocol to the African Charter on Human and Peoples' Rights on the Rights of Persons with Disabilities in Africa.	• Protocols approved by Parliament. • Instruments of ratification deposited with the AU Commission.
142.23	Extend an open invitation to the special procedures of the Human Rights Council.	Process and respond to requests by special procedures of the Human Rights Council.	• No. of requests by special procedures received and responded to.
142.36 142.37 142.38	Take measures to strengthen the independence and efficiency of the Kenya National Commission on Human Rights, in accordance with the principles relating to the status of national institutions for the promotion and protection of human rights.	Appoint KNCHR Commissioners. Allocate adequate resources to the Commission.	• Commissioners appointed. • Amount of Funding given to KNCHR per financial year.
142.42 142.43 142.44 142.45	Consider reviewing the National Policy and Action Plan on Human Rights to ensure that it addresses all emerging issues.	Commence the Review of the National Policy and Action Plan on Human Rights.	• Concept Paper and budget developed. • Roadmap for review developed finalized and adopted.
142.49 142.52	Continue with the Security Sector reforms to enable police to effectively protect and respect human rights.	Undertake security sector reforms to enable police to protect and respect human rights. Strengthen Accountability Mechanisms in the security sector.	• Number of police stations with an operational digitized OB. • Finalize the development of guidelines on the use of force, firearms, and public order management. • No. of officers awarded for respected of human rights. • No of complaints lodged by the public. • No. of cases investigated, prosecuted and convicted. • No. of disciplinary cases commenced and concluded.
142.50	Continue with the public sector reforms in order to respect and protect all human rights.	Undertake public sector reform to uphold respect for human rights.	• Number of officers trained on human rights-based approach to service delivery. • Number of reports on compliance of human rights standards in service delivery.
142.55	Strengthen training and awareness programmes for State officials in the field of human rights for the effective implementation of the law on prevention of torture.	Undertake training and create awareness on prevention of torture among state officials and law enforcement officers.	• No. of stakeholders trained on the Prevention of Torture Act.
142.90	Continue the efforts to put an end to extra-judicial killings by police officers, including in the context of counterterrorism measures.	Develop strategies to end extra judicial killings by police including within the context of counter terrorism.	• Number of officers prosecuted and convicted for extra judicial killings. • Guidelines on use of force, firearms, and public order management developed.
142.91 142.92 142.94 142.137 142.138 142.140 142.142 142.144 142.145 142.146 142.148	Prevent torture and impunity through full implementation of the National Coroners Service Act 2017 and the Prevention of Torture Act 2017, including an evaluation tool to monitor progress.	Implement the National Coroners Service Act, 2017. Undertake a study to understand the challenges of implementation of the Prevention of Torture Act, 2017 and how the same can be addressed. Investigate and Prosecute Torture Cases.	• The National Coroner's Service Act operationalized. • Study Report. • Sensitize police on how to identify torture cases Number of cases investigated and prosecuted for the Offence of Torture.

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142.93	Ensure torture victims' access to rehabilitation.	Finalize and Implement the Victim Protection (Trust Fund) Regulations.	The Victim Protection (Trust Fund) Regulations finalized and implemented.
142.156	Further the implementation of the Access to Information Act.	Implement the Access to Information Act.	- Regulations on the Access to Information Act developed and adopted. - Percentage of public records digitized. - Number of complaints addressed for violations under the Access to Information Act.
142.157	Take further measures towards ensuring the safety of journalists, as well as towards guaranteeing the freedoms of expression, press, association, and peaceful assembly.	Undertake activities that promote safety of journalists.	- Number of cases investigated and prosecuted. - Number of officers trained on proper public order management - No. of stakeholders trained on proper public order management.
142.159 142.161 142.163	Ensure the safety of human rights defenders.	Put in place a policy framework to protect human rights defenders.	Policy Framework developed.
142.139 142.143 142.153 142.154 142.158	Ensure transparent and effective investigations in cases where human rights defenders have been harmed and adopt a law protecting human rights defenders in accordance with international standards.	Investigate attacks against human rights defenders and journalists.	Number of cases investigated and prosecuted.
142.132 142.160 142.162 142.164	Create a safe and enabling environment in which human rights defenders and civil society can operate free from hindrance and insecurity, including through the full operationalization of the Public Benefit Organization Act 2013.	Operationalize the PBO Act.	PBO Act operationalized.
143.3	Review the 2018 'Associations bill' and ensure that NGO laws are in line with the right to freedom of expression.	Review the 'Associations Bill'.	Bill reviewed.
142.81	Commute the death sentences of the remaining 810 death row inmates.	Commute the death sentences of inmates on death row.	Number of prisoners whose death sentences have been commuted to life.
142.82 142.83	Finalize the implementation of the National Court ruling declaring death sentence to be unconstitutional.	Adopt measures, including review of laws to comply with the Supreme Court ruling on the unconstitutional nature of the mandatory death penalty.	- Number of Laws reviewed and amended. - No of prisoners on death row for murder charges who have been resented as a result of the Muruatetu case. - No. of Prisoners on death row whose sentence has been commuted.
142.84 142.85 142.86 142.87 142.88 142.89	Continue taking steps to abolish the death penalty.	Undertake steps towards abolishing of the death sentence including carrying out sensitization forums and public surveys.	Public Survey Report on abolition of the Death Penalty.
142.129	Continue implementing its legal aid policies to ensure equal access to justice for victims of racial discrimination, minorities, and indigenous peoples.	Implement legal aid policies that promote access to justice for victims of racial discrimination, minorities, and indigenous people.	The National Legal Aid Policy implemented.
142.130	Set up specialized courts that enable the speeding up and the effective treatment of gender-based violence cases.	Commence stakeholders engagements on the establishment of specialized courts to deal with SGBV.	- Concept Paper developed and disseminated. - No. of stakeholder forums held. - Number of investigators prosecutors and Judges trained on how to handle SGBV Cases.

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142.68 142.69 142.70 142.71 142.72	Continue efforts aimed at fighting corruption as well as illicit financial flows and tax avoidance.	Put in place measures to fight corruption, illicit financial flows, and tax avoidance.	- National Ethics and Anti-Corruption Policy Implemented. - No. of Assets recovered from Corruption.
		Build Capacity on Business and Human Rights, Rights based Approaches to Development and Taxation and how to handle Illicit Financial Flows.	No. of Officers trained and sensitized.
142.69 142.70	Take further measurable efforts to combat corruption, including by ensuring thorough and effective investigation, prosecution of all suspects and punish perpetrators.	Combat corruption through investigation, prosecution, and punishment of perpetrators.	Number of cases investigated and prosecuted.
142.71	Continue taking targeted steps aimed at improving national legislation on the fight against corruption.	Amend or Review legislation on Anticorruption.	No. of Anti-Corruption Legislation amended.
142.150	Ensure that the right to freedom of religion or belief is fully protected and promoted.	Protect freedom of religion through the creation of an enabling environment.	- Moratorium on registration of Religious Institutions Lifted No. of religious institutions registered. - Rules for religious societies developed and finalized.
142.149 142.135	Implement the recommendations made by the Truth, Justice, and Reconciliation Commission, including investigating, and punishing those responsible for serious human rights violations as well as providing remedy to the victims.	Ensure reparations for victims of human rights violations through development of a policy on reparations.	Reparations Policy Developed.
142.51	Adopt the necessary legal framework to guide the operationalization of the Restorative Justice Fund.	Operationalize the Restorative Justice Fund.	Regulations for the Restorative Justice Fund developed.
142.73 142.74 142.75	Ensure the final approval, launch and execution of the National Action Plan for the implementation of the Guiding Principles on Business and Human Rights.	Ensure adoption and launch of the National Action Plan for the implementation of the Guiding Principles on Business and Human Rights.	National Action Plan on Business and Human Rights approved by Cabinet and National Assembly.
		Establish a NAP implementation and monitoring committee	An operational NAP implementation and monitoring committee established.
		Introduce a requirement for conducting Human Rights Due Diligence before approval of licenses/permits to businesses.	No of Businesses certified in adhering to Business and human rights principles.
142.132	Raise the age of criminal responsibility.	Raise the age of criminal responsibility by amending the penal laws.	Penal Code amended.
142.257 142.41	Consider further measures to enhance the meaningful participation of indigenous peoples in all matters affecting them.	Implement the Community Land Act and the County Government Act.	The Community Land Act and the County Government Act Implemented.
		Finalize legislation that gives effect to Article 100 of the Constitution.	Legislation on Article 100 finalized.
		Mapping of minorities and marginalized communities in Kenya.	Report Mapping of minorities and marginalized communities in Kenya.
142.62	Develop and adopt appropriate legislative and administrative measures to combat discrimination against women as well as discrimination and violence against LGBTI people.	Develop and adopt legislative and administrative measures to combat discrimination against vulnerable groups.	Specific measures adopted to address de facto discrimination in service provision including affirmative action measures adopted in policy plans.

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142.59 142.64	Amend discriminatory laws against women and eliminate harmful practices and gender-based violence against women and girls.	Undertake mapping of discriminatory laws highlighting their implication on men, women, boys, and girls.	• Report on number of laws analyzed.
		Amend laws that discriminatory against women.	• No. of discriminatory laws amended.
142.178 142.179	Take additional measures to eliminate discrimination and harassment in the workplace, including on the bases of sex and sexual orientation and gender identity.	Amend the Employment Act to provide enforcement and redress mechanism for sexual harassment.	• Employment Act amended.
		Develop national guidelines on gender mainstreaming in the workplace.	• National Guidelines on gender mainstreaming in the workplace finalized.
		Develop and implement a national standard/tool for measuring compliance to employment act in all sectors and across all levels.	• Standard/tool finalized and implemented.
142.60	Strengthen gender equality by implementing the two-thirds gender principle in all elective or appointive bodies in a timely manner.	Develop bills necessary to effectively implement the 'not more than two thirds gender principle' and lobby for the adoption.	• Draft bills presented to parliament for adoption.
		Assess the Implementation of the two-thirds gender principle in all elective or appointive bodies.	• No. of consultative meetings held on the Bill.
			• Ratio of men to women in elected and nominated positions.
			• No. of institutions complying with the "not more than two thirds gender" principle.
142.63 142.165 142.166	Establish mechanisms to increase the participation of women in political and public life, in decision-making positions.	Implement the National Policy on Gender and Development.	• Percentage of Implementation of the National Policy on Gender and Development.
		Implement the National Strategy to support greater participation of women for elective politics.	• National Strategy to support greater participation of women for elective politics implemented.
		Train women in leadership skills.	• No. of women trained.
			• No. of women participating in decision-making as a result of training.
142.221 142.224	Continue efforts to address inequalities between men and women in education.	Develop strategies to enhance retention of girls in school.	• Percentage change of retention rates and performance among girls.
		Create public awareness on education re-entry policy.	• No. of students reentering schools.
142.225	Continue to develop the national machinery for the advancement of women, strengthen coordination between various executive bodies and provide them with adequate resources.	Develop a national coordination and accountability mechanism for women comprising of various executive bodies.	• Coordination and Accountability mechanism put in place.
142.230	Guarantee women access to land by inter alia ensuring the full implementation of the constitutional provisions giving women equal rights to land ownership as men as well as the execution of the Marital Property Act and other women's land rights.	Undertake public awareness forums on the available legal frameworks on equitable access to land and other natural resources Facilitate women's access to land.	• No. of public awareness forums on women, land and property rights Land registration systems digitized.
		Fully implement the Constitutional and other legal provisions on women equal rights to land ownership.	• Percentage change in women access and ownership of land and property
			• No. of cases presented to land tribunals courts or other forms of alternative land dispute resolution mechanisms (ADR) and concluded.
		Review laws and policies that discriminate against women's access to land.	• No. of Laws reviewed.

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142.232 142.233 142.234	Further promote women empowerment and gender equality.	Put in place measures to promote political, economic, and social rights of women. Implement the Women Economic Empowerment Strategy (2020-2025).	- Percentage change in the uptake of affirmative action funds and programme by Women. - Strategy Implemented.
142.67	Ensure that women, especially rural women, are meaningfully engaged in the development and implementation of climate change and disaster risk reduction legislation and policies.	Engage women, especially rural women in development of laws and policies relating to climate change and disaster risk reduction.	No. of rural women consulted.